

**SUBSTITUTE FOR
HOUSE BILL NO. 5330**

A bill to amend 2016 PA 436, entitled
"Unmanned aircraft systems act,"
(MCL 259.301 to 259.331) by adding section 16.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 16. (1) Beginning 1 year after the effective date of the**
2 **amendatory act that added this section, a public entity or a person**
3 **contracting with a public entity shall not procure, purchase,**
4 **operate, or deploy a small unmanned aircraft system unless the**
5 **small unmanned aircraft system complies with the requirements of**
6 **this section.**

7 **(2) All of the following requirements apply to small unmanned**
8 **aircraft systems described in subsection (1):**

9 **(a) All video footage, photographs, telemetry data, and**



1 personally identifiable information including, but not limited to,
2 names, addresses, and other identifying details, collected,
3 transmitted, or stored must be collected, transmitted, or stored
4 only within the United States and must be managed in compliance
5 with federal and state privacy laws, cybersecurity standards, and
6 guidelines issued by the Cybersecurity and Infrastructure Security
7 Agency and the Federal Bureau of Investigation.

8 (b) Must use end-to-end encryption for data-at-rest and data-
9 in-transit using AES-256 encryption and transport layer security
10 protocols to prevent unauthorized access.

11 (c) Must operate on a secured, segmented network to mitigate
12 cybersecurity risks.

13 (d) Must require multifactor authentication and role-based
14 access controls to limit access.

15 (e) Must incorporate tamper-proof hardware to prevent
16 unauthorized modifications.

17 (f) Must utilize automatic deletion policies ensuring data
18 removal within 45 days unless otherwise specified by law
19 enforcement or public safety agencies.

20 (g) Must incorporate real-time monitoring systems capable of
21 detecting unauthorized access, cyber threats, or operational
22 anomalies, with automated countermeasures deployed as necessary.

23 (3) A public entity or person contracting with a public entity
24 using a small unmanned aircraft system must conduct security audits
25 annually and demonstrate compliance with all of the following
26 cybersecurity standards:

27 (a) The National Institute of Standards and Technology
28 Cybersecurity Framework 2.0.

29 (b) ISO 27001.



1 (c) SOC 2.

2 (4) The department of state police shall establish regulations
3 or guidance for implementing this section, including, but not
4 limited to, all of the following:

5 (a) Required security assessments for all small unmanned
6 aircraft systems.

7 (b) Privacy protection measures and compliance verification.

8 (c) Network security controls and intrusion detection
9 standards.

10 (d) Cybersecurity training requirements for small unmanned
11 aircraft system operators.

12 (e) Enforcement mechanisms ensuring that any small unmanned
13 aircraft system that does not meet the requirements of this section
14 is disqualified from use by a public entity or a person contracting
15 with a public entity.

16 (5) As used in this section:

17 (a) "Public entity" means that term as defined in section 1 of
18 1968 PA 317, MCL 15.321.

19 (b) "Small unmanned aircraft system" means a powered aircraft
20 that meets both of the following:

21 (i) Operates without direct human intervention from within or
22 on the aircraft.

23 (ii) Has a total weight, including any attached or carried
24 components, of less than 55 pounds.

